



INDIAN LAW & DEALMAKING · 27 SEPTEMBER 2026

Five moves shaping the board now.

- › NCLAT restores GOCL merger scheme
- › SEBI penalises Omaxe over MPS fraud
- › SC penalises UP police delays
- › ED attaches Electrotherm promoter equity
- › ED freezes Mahadev Online syndicate assets

SWIPE →



NCLAT resurrects GOCL and Hinduja merger scheme

On September 25, 2026, NCLAT Chennai set aside NCLT's dismissal of the GOCL Corporation and Hinduja National Power Corporation merger scheme. The Appellate Tribunal held that appointed date and exchange filing delays are premature grounds for rejection at the First Motion stage.

THE READ

The ruling reinforces that First Motion scrutiny under scheme proceedings cannot turn into an early trial on merits. M&A counsel get clear authority that procedural delays do not justify threshold dismissals before meeting notices go out.



SEBI penalises Omaxe and promoters for MPS fraud

On September 25, 2026, SEBI barred Omaxe Ltd from the securities market for three months and promoter Rohtas Goel for one year. The regulator imposed ₹1.92 crore in total penalties after finding Omaxe funded entities to acquire its own shares during a 2013 OFS to fake public shareholding compliance.

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The order signals zero tolerance for circular funding schemes designed to satisfy minimum public shareholding rules. Promoters face immediate market expulsion when corporate funds are routed back into equity offerings to simulate genuine public float.



Supreme Court targets police delays in commercial trial

On September 26, 2026, the Supreme Court directed Uttar Pradesh to initiate departmental proceedings against Mau district SPs since 2023 over prosecution witness delays. The court mandated a Chief Secretary affidavit detailing disciplinary actions prior to November 16, 2026.

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Commercial trial speed remains tightly bound to criminal process compliance when proceedings intersect. Boards running complex fraud prosecutions must leverage judicial monitoring to force accountability on slack investigating authorities.



ED attaches Electrotherm promoter equity over bank default

On September 25, 2026, the ED attached ₹25.08 crore in bank deposits and 13.57 lakh promoter shares of Electrotherm India under PMLA Section 5(1). The action follows a Bank of India fraud complaint involving an unrecovered default loss of ₹81.97 crore.

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The attachment demonstrates how commercial loan defaults escalate rapidly into equity-freezing PMLA actions. Lenders and asset reconstruction companies gain additional leverage as enforcement actions target promoter shareholdings directly.



ENFORCEMENT · ED

05 / 05

ED seizes Mahadev syndicate assets worth 312 crore

On September 25, 2026, the Enforcement Directorate issued provisional attachment orders seizing ₹312 crore in real estate, equity holdings, and bank accounts of Mahadev Online Book syndicate promoters. The order targeted key promoter Saurabh Chandrakar and associated domestic shell entities under the PMLA.

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The seizure shows aggressive tracking of money laundering channels linked to illegal online betting networks. Corporate entities interacting with promoter-backed front companies face severe contagion risks from widespread asset attachment orders.



THE THROUGH-LINE

Across corporate schemes, equity compliance, trial administration, and money laundering enforcement, regulators and courts are shutting down structural delays and artificial arrangements. Forum scrutiny is sharpening around promoter conduct, from circular shareholding disguises to procedural default in criminal commercial trials. Dealmakers and general counsel must recognize that threshold procedural defenses are crumbling against aggressive regulatory oversight.





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